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EUROPEAN DELEGATION TO THE REPUBLIC OF LEBANON

Technical Assistance to the Administrative Simplification in selected ministries in Lebanon (Ministries of Social Affairs, Tourism, Public Health and Industry)

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Strategy Paper



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Table of Contents

ABBREVIATIONS	Error! Bookmark not defined.
Executive Summary	8
The Context	8
Priorities	9
Tentative road-map for pilot activities to foster regulatory reform	20

ABBREVIATIONS AND ACRONYMS

CBS	Civil Service Board
DG	Director General
EC	European Commission
EU	European Union
GDP	Gross Domestic Product
HRD	Human Resources Development
HRM	Human Resources Management
ICT	Information and Communication Technology
MDG	Millennium Development Goals
MoB	Municipality of Beirut
Mol	Ministry of Industry
MoSA	Ministry of Social Affairs
MoPH	Ministry of Public Health
OECD	Organization for Economic Cooperation and Development
OMSAR	Office of the Minister of State for Administrative Reform
OSS	One Stop Shop
RIA	Regulatory Impact Assessment
SC	Steering Committee
SCM	Standard Cost Model
SMEs	Small and Medium Enterprises
SSDC	Social Services Development Centre
TLC	Tourism Licensing Committee
UNDP	United Nations development Programme

Executive Summary

This Strategy is intended to identify and define the strategic directions according to which the 4 pilot ministries (Ministry of Public Health, Ministry of Social Affairs, Ministry of Industry and Ministry of Tourism) policy objectives and strategies envision their action in addressing the administrative and organisational issues that are currently affecting their work.

The following strategy is based upon the assessment of the organisation and management patterns of 4 selected pilot ministries. The 4 pilot ministries, beneficiary of the assistance to simplify procedures and business processes re-engineering, share a common platform of issues that can be addressed with common measures and remedies.

The strategy that is hereby outlined starts from an empirical assessment of the situation regarding the regulatory environment, namely: structures, procedures, communication and overall management. The information collected in the phase of assessment has revealed a generally weak capacity to carry out regulatory reforms required to address the pending difficulties.

To this effect the process of improvement concentrating on normative and procedural simplification, with an eye to better organisation and communication, is to be focused on both the internal management of the Public Administration and on the framework of rules and procedures that ensure the reliable and quality delivery of services.

In line with the indications gathered during this first phase of the project in broad terms this strategy is meant to focus on the following key areas of regulatory reform:

- **Upgrading the quality of existing regulations aiming** at improved legislation governing the 4 institutions based upon modern drafting techniques,
- **Organisation and management of administrative services** with particular attention to improving and simplifying the internal organisation of the 4 pilot ministries
- **Simplification and Reduction of Burdens** introducing the practice of Regulatory Impact Assessment and Standard Cost Model measurement ;
- **Information and data** management for faster and less costly processing of formalities and interoperability.
- **Capacity building** for those administrators that are expected to be actively involved in the simplification and better regulation activities in the 4 pilot ministries and operate according to simplified procedures

The strategy document is annexed with a presentation that will be discussed with the working teams in OMSAR and the beneficiaries during the analysis phase, in order to get their feedback and input before redrafting the whole documents accordingly.

The Context

a) Scope of the Strategy

Scope of the strategy is to prepare a framework of indicative actions for further development into a fully fledged and comprehensive Strategy Paper to be carried out by the end of Phase 2 of this project. In this respect the current Strategy intends to define the strategic directions pertaining to the beneficiary Ministry regulatory roles and functions in light of legitimate policy objectives in view of drafting a strategy paper setting out a general vision for each beneficiary Ministry with regard to its overall regulatory functions in respect of business activities.

b) Situation

The improvement and modernisation of the Public Administration in Lebanon requires the adoption of measures intended primarily to ensure a structured and co-ordinated process of simplification of rules and procedures and organisation of structures in order to ameliorate the quality standards in the delivery of services to businesses and citizens.

The following strategy is based upon the assessment of the organisation and management patterns of 4 selected pilot ministries (Ministry of industry, Ministry of Social Affairs, Ministry of Tourism, Ministry of Public Health). All of them have a significant role in the social and economic life of Lebanon since they are either source of public spending or of potential revenue earning for the Country. The efficient functioning and simplified management of services and procedures is expected to yield long-term benefits and better quality of life.

The 4 pilot ministries that are beneficiary of the assistance to simplify procedures and business processes re-engineering, share a common platform of issues that can be addressed with common measures and remedies. More specifically, the way offices are organised, managed, staffed, and networked impact on the speed and quality of services. The strategy that is hereby outlined starts from an empirical assessment of the situation regarding structures, procedures, communication and overall management. The information collected in the phase of assessment has revealed a generally weak capacity to carry out regulatory reform. In consideration of these findings the strategy shall touch also upon issues of more general relevance such as: the need for a centrally established oversight entity to guide and stimulate regulatory reform and simplification, modernisation of the human resources management model; the relationship with the local administration and the division of responsibilities between the centre and the periphery.

As far as the Lebanese Public Administration is concerned, the main target of a strategy in this direction is to foster bureaucratic flexibility and responsiveness to client's needs as well as improved cost efficiency and effective service delivery. To this effect the process of improvement concentrating on normative and procedural simplification, with an eye to better organisation and communication, is to be focused on both the internal management of the Public Administration and on the framework of rules and procedures that ensure the reliable and quality delivery of services. The modernisation of the public administration depends also on the adoption of rules regarding information and data management, for which both policies and legislation are ready and for which the expected Government decision is pending.

The Lebanese Public Administration appears to be a system which has progressively aged without filling important normative and procedural gaps thus being entrapped in a maze of old and complex rules and formalities no longer responding to the needs of a fast moving society and even more rapidly growing economy. Out-dated rules and formalities still survive and a comprehensive exercise of substitution is on going or is just in its inception phase.

Procedures are complex and set in stone by the strict respect of regulations and administrative laws, which leads to a lack of efficiency, rapidity and overall good performance regarding attaining the objectives cited in these very same laws and regulations. As a result the tendency to “surround” rules and delays generates conditions for corruption that definitely does not help effectiveness, fair treatment of citizens, and efficiency in managing procedures.

Priorities

Upon discussion with the staff of the 4 pilot ministries has brought to evidence their needs for attaining their corporate goals and implementing strategic plans. It is important to take into account that not all Ministries have well structured and updated strategic plans. However, a common platform of pending issues and expectations makes possible the formulation of a tentative general common strategy. To confirm the existence of this common platform it is important to notice that all 4 ministries have expressed concern and expectations to reorganise/rationalise their services and revise their internal staffing levels in line with modern standards of professionalism and competence (MoI and MoSA). All 4 pilot Ministries have share a concern on the quality of the legislation establishing the their structures and organisation and the desire of moving from mere follow up of personnel matters to more active and modern human resources management under guidance of and in subsidiary position to the CSB. Job descriptions formulated according to criteria of competence and well defined accountability and responsibility are felt in all ministries to be an urgent priority. Concrete requirements for improved and functioning IICT (hardware and software), particularly for facilitating the work for the MOI with its regional branches and municipal (SSDCs) as well as regional units for the MOSA are for the ministries priority. The interoperability is another priority for all of the 4 ministries indistinctly. The MoPH for example needs to have regular exchanges of documents for licensing purposes with some key ministries like Education and Justice. The speed and effectiveness of the Committee for licensing enterprises (MOI) could be accelerated if only the ministries members of the Committee would communicate and transfer files electronically. Capacity to deal on a regular and professional base with regulatory issues such as simplification and better regulation are considered also very important for the MoSA.

Some priority areas of intervention are hereby suggested to become part of a well-focused strategic approach for strengthening the regulatory environment in Lebanon. This strategy is meant to establish conditions, on a pilot base, for regulatory reform, inspired by the best EU

countries best practice, prior to extend the proposed models to the rest of the public administration.

Line with the indications gathered during this first phase of the project In broad terms this strategy is meant to focus on the following key areas of regulatory reform:

- **Upgrading the quality of existing regulations aiming** at improved legislation governing the 4 institutions based upon modern drafting techniques, consolidation of normative texts and codification, repealing obsolete regulations and harmonising the exiting ones according to criteria of modern management; consultation with stakeholders, globalisation of regulatory activities;
- **Organisation and management of administrative services** with particular attention to improving and simplifying the internal organisation of the 4 pilot ministries according to more accurate distribution of responsibilities, incorporation of overlapping units and adequately deployed and competent staffing;
- **Simplification and Reduction of Burdens** introducing the practice of Regulatory Impact Assessment as ex ante tool for preventing the risks of excessive or overlapping regulation /formalities and Standard Cost Model measurement as ex post instrument to measure administrative burdens deriving by complex procedures
- **Information and data** management for faster and less costly processing of formalities and interoperability among institutions particularly for those procedures that require close interaction among several institutions both at the central and local level.
- **Capacity building** for those administrators that are expected to be actively involved in the simplification and better regulation activities in the 4 pilot ministries and operate according to simplified procedures

In practice the strategy for regulatory reform should be aiming at attaining the following specific objectives:

Improved quality of administrative regulations

The quality of legislation is still poor. The regulations governing the administrative processes and the organisation of the 4 pilot ministries are in many case too old and their amendments are scattered across the body of legislation with the consequence of being very difficult to organise them in a way to facilitate the definition of the actual regulatory framework governing different areas of the administration and its organisation.

Access to legislation is difficult and there is uncertainty of the prevailing rule, in some cases, due to the difficult traceability of decisions or other secondary normative texts. The system of succession of regulations at the moment remains confusing. The practice of compiling sector specific codes of legislation (i.e. construction, pharmaceuticals, social services etc.) it is still unknown at the expenses of rationalisation of norms.

In the specific case of the 4 pilot ministries the existing regulations (primary and secondary) that establish them and define their respective mission and internal organisation consist of rules and procedures that have not been adapted to a fast changing environment. The mentioned legislation has been adapted to the changed environment, through the years, with ad hoc regulatory interventions not part of a comprehensive reform programme. This approach has not modified some of the rigidities that are currently hampering the effective and efficient way the individual ministries and their units operate and are organised. For example in the Ministry of Tourism the ICT personnel is to be outsourced because the law establishing the ministry does not foresee an ICT Department and therefore the specialised personnel to run it can not be hired but only outsourced or shifted from one department to the ICT unit while still being employed in his/her department of origin.

The adoption of one single normative text that revises and defines the mission of each ministry, their individual roles and responsibilities, and their internal organisation is to be considered a priority for action.

The process of legislative review, amendment and approval, is very much time consuming and subject to hindering extended political bargaining among parties and groups of interest.

The recourse to codification and integration of rules governing procedures and formalities in Single Normative Texts is missing. Regulatory vacuum, regulatory inadequacy, regulatory pollution and inflation are recurrent features of the Lebanese regulatory environment that need to be drastically reduced. A “Better Regulation” programme and an oversight body with clear mandate and authority to conduct proactively regulatory reform beyond just simplification are essential to put order in the present regulatory framework particularly regarding the management of normative texts. There is an excessive recourse of regulating matters with primary legislation, particularly in those cases where flexibility for the synchronisation of the institutional set up with the evolving society is vital.

Improved management and organisation of structures

Often the regulatory ineffectiveness of the 4 pilot ministries is the result of a broader weakness in the management of the public administrative organisation. The Incremental approach characterised by patchwork reforming is simply not a viable option any longer. As well, simplification is to be understood as simplification of rules, procedures and organisation responsible to conduct administrative action,

The limited effectiveness of the current administrative action is mainly due to: inappropriate distribution of tasks, absence of teamwork for complex tasks, insufficient professional capacity, inadequate decision making authority, and limited distribution of authority at different levels of the hierarchy. To these drawbacks the lack of modern work tools such as computers and data networks is to be taken as an aggravating factor.

A brand new management and working model supported with appropriate policies and new legislation is needed. The focus of roles and responsibilities of Services and Departments within the 4 pilot ministries needs a change. This requires a thorough review of the scope and content of

the tasks assigned to the administrative units, the scope and purpose of the procedures for which they are responsible, and the type of regulations that govern the workflows of the units. The primary action to be taken is to review the terms of the delegation of authority from top-down and from the “centre” to the “periphery”. As well, the current administrative culture needs to evolve from a “control driven” administration to one that is “decision making”, “problem solving” and “performance” oriented. Consequently this leads to proportionately distributed responsibility and enhanced accountability of the administration, with a different model of procedures to implement. In this respect like in Denmark, where the public administration has shifted from detailed process-based regulations to performance-based regulations the same qualitative leap is to be planned for the Lebanese public administration starting with a pilot initiative in the 4 selected ministries. Action should start to be taken in the following areas:

a) Delegation of Authority and De-concentration

A de-concentrated administration is primarily based on the delegation of authority from the central administration to its branches established in well-defined parts of the national territory. The line of command is definitely vertical, with a central administration, at the top of the hierarchy, in charge of setting the guidelines and policies as well as securing oversight of the actions delegated to the territorial authority. The territorial authority has competence and authorisation to act and decide according to criteria territorial jurisdiction, jurisdiction according to value (spending) and sector specific mandate (health, construction, industry etc.). In the Lebanese public administration all this is rather confused. The relationship with the central administration and the mandate of the Regional administration, as well as of the district and somehow of the municipality is overshadowed by an imposing role of the ministries as sole licensing or decision making authority.

The relationship between State, Regional, District and Municipal institutions need to be streamlined and a better definition of the institutional model, whether centralised or decentralised or de-concentration has to be defined without ambiguities. This uncertainty greatly contributes to structural complexity and consequent costly and time consuming passages in the implementation of procedures. Principles such as Vertical and Horizontal Subsidiarity do not appear to permeate the functioning of the Public Administration in Lebanon. Sharing with the local administration the initiatives of simplification is fundamental for effective regulatory reform and simplification across the country.

Considering that the officially recognised model is the one of the de-concentration it is advisable to revamp it on a pilot base and bring it to its own original formula and capacity. The 4 pilot ministries could restore the old and traditional scale of hierarchical subordination that links ministries with Regional governments, defining the limits of competence and jurisdiction and delegating, according to criteria of proportionality and subsidiarity, authority to process and in well defined cases decide, issuing permits etc. Particularly important is to establish a pilot project on subsidiarity of this type.

In some European States local government is divided into two tiers (county province-district/municipality) with different powers and responsibilities, but with homogeneous territorial distribution. The second tier usually gives support to the basic one, although there are States that attribute responsibilities to the basic tier depending on the number of inhabitants (e.g. Germany, Spain).

In certain countries, towns or capital cities might also have recognized special attributions (e.g. Hungary, Latvia, Spain, Turkey, etc.). In those countries the second tier is also an entity with its own powers and competences and not a decentralised State body.

(The relationship between central and local authorities. Report of the European Committee on Local and Regional Democracy (CDLR). Conseil d'Europe - 2007)

De-concentration and therefore subsidiarity can go very far till the point of sharing responsibilities for better regulation and simplification between the central State authorities and the local ones. It is worth mentioning the cases of Denmark and the Netherlands where subsidiarity encompasses is productively implemented as part of the regulatory reform implementation.

The Netherlands

An effective institutional framework has been established for sharing the Better Regulation agenda with the local levels of government. Municipalities have a key interface with business and citizens via their enforcement, planning and licensing responsibilities. The central government agreement with the municipalities and its linked Better Regulation Action Plan provides shape and substance to the roll out of shared Better Regulation goals, such as meeting burden reduction targets. (OECD Best Practice EU Regulatory Reform)

Denmark

The Danish association of municipalities, plays an important role in this co-operation, both through the negotiation of the annual framework agreement, which includes discussing priorities and targets for Better Regulation, and through regular informal consultations with ministries. Along with Danish Regions it is also part of the STS Committee, which plays a key role in the development of e-government policy and strategy. In 2005, the Danish Evaluation Institute for Local Government was established marking an important further development in the co-operation between local governments and central government (OECD Best Practice EU Regulatory Reform)

b) Size of Units, allocation of tasks and horizontal interaction among units

The units of the 4 pilot ministries are particularly small and many for the overall mandate of the respective ministries. There is the impression that in some cases the allocation of responsibilities is guided by criteria other than “efficiency” and effectiveness. Some tasks are fragmented (like in the MOSA) between two different Departments belonging to two separate services. Vertical management and centralised control prevails. In some cases (Service of Inspection in the Ministry of Tourism) some departments have no defined guidelines for action and risk to overlap with other units or, worse, in some cases, their

staffs are bound to improvise their work. The horizontal interacting among services and departments is very limited to the point that teamwork takes place only through the work of Committees that are structures with no decision-making capacity. Overall below the level of General Director the role of the ministerial structures is primarily an advisory one, with no evidence of authority to provide guidance to citizens or monitor enforcement of regulations. In this perspective a pilot exercise of reorganisation focusing on the integration of departments (and departments with other types of operational units like projects in the MoSA) with similar mandate could prevent spreading the implementation of procedures among different small units and justify also the attribution of some decisional authority.

b) Human Resources

The 4 ministries have limited capacity to ensure appropriate management of human resources since the CSB centralises all functions. Staffing levels are very low. The dysfunctional staffing patterns have an impact on the quality and quantity of work completed. Services delivery is slow also because of the shortage of personnel particularly in the so called “core positions” generally occupied by civil servants.

The absence of job descriptions in line with the international best practice also contributes to maintain limited the level of authority and responsibility of the individual staff. All 4 pilot ministries observed during the assessment process reveal to be understaffed at average 40% of what planned and established by the current legislation. The shortage of 40% mainly concerns the civil service positions. However, even by filling the gaps with the employment of temporary staff on contract, the average rate of posts filled is below 50%. According to the information gathered the distribution of staff is inconsistent with actual operational needs (too many people in certain services) and not adequately qualified.

The inadequacy of the current model of performance measurement and the absence of a structured performance management system can be overcome with a joint pilot project between the individual 4 ministries and the CSB. Some support work from HRM units delegated by the CSB in key areas of HRM would help the planning and management of human resources with an immediate impact on the quality of services.

Use of instruments for improved regulatory quality

Recourse to Regulatory Impact Analysis (RIA) is not a consolidated practice in the regulatory practice of the Lebanese Public Administration as the measurement of administrative burdens in line with the Standard Cost Model (SCM). Guidelines for the appropriate conduct of RIA do not seem to be set and responsibility for promoting RIA and monitoring its correct and consistent use are not assigned. The *ex ante* assessment of the costs and their impact on the stakeholders would definitely be a sound preventive tool against complexity and costly procedures. The adoption of a Standard Cost Model (SCM) can be also considered a very viable tool for monitoring the burdens that regulations and procedures can impose on businesses and citizens. The *ex post* analysis (measurement) that is part of the SCM further contributes to sustaining, with objective evidence, cutting the complexities that have not been spotted during the RIA. Moreover it seems that there is no office responsible to carry out either RIA and/or SCM in the 4 pilot ministries or in a central

institution in charge of administrative reform. Moreover there is a need to establish capacity to monitor and evaluate the way ministries, and their Services, operate and the way the procedures and related regulation are applied as well as the consequences that they generate. A pilot project for creating capacity in the 4 selected ministries could be very helpful for simplification purposes. Many countries in the EU, and not only are successfully implementing both RIA and SCM.

Denmark

The Danish government is one of the front-runners in the area of administrative burden reduction for business. It has used the Standard Cost Model (SCM) to measure administrative burdens, and has committed to a reduction of 25% within a timeframe of eight years, between 2001 and 2010. A reduction of 15% was achieved by mid-2008. (OECD Best Practice EU Regulatory Reform)

The Netherlands

The Netherlands pioneered the Standard Cost Methodology (SCM) for the reduction of administrative burdens starting in 2003. Achievements for the business sector have been significant, and the 25% net reduction target set by the last cabinet was broadly met. A new 25% reduction target has now been set, and the methodology has been broadened and strengthened. ((OECD Best Practice EU Regulatory Reform)

Portugal

Effective ex ante impact assessment of regulations has appeared with the Simplex Test Programme. A form of impact assessment has been formally introduced, both in the rules of procedures of the executive and of the parliament. The government has also introduced the Simplex Test for new draft regulation, mainly to assess the administrative burdens that the regulation could impose on citizens and businesses (OECD Best Practice EU Regulatory Reform)

United Kingdom

The areas with major developments in the regulatory reform of the UK include ex ante impact assessment, policy on enforcement, engaging the local authority level. Major efforts are being made to integrate impact assessment into the policy making process. Impressive institutional and methodological support is in place.

The UK Government has been moving forward simultaneously on two key fronts: simplification of existing regulations through the reduction of administrative burdens on business, and ex ante impact assessment of new regulations. The government announced an institutional reinforcement of this approach in April 2009, via the establishment of a new external Regulatory Policy Committee, whose role will be to advise government on whether it is doing all it can to accurately assess the costs and benefits of regulations. The UK Government also seeks to learn and apply lessons from the ex post evaluation of past approaches. Major efforts are being made to integrate impact assessment into policy making, so that the two processes are interwoven (OECD Best Practice EU Regulatory Reform)

Confirming Oversight of Regulatory Reform including Administrative Simplification

The level of authority and responsibility of the OMSAR in guiding and for current management of the simplification and regulatory reform processes needs to be boosted and sustained with a more assertive mandate to OMSAR to simplify and deal with better regulation and full regulatory reform. There is a need also to consolidate the strengthening of OMSAR oversight capacity by building

capacity within ministries to ensure better regulation and monitor administrative complexity and ,after, at the local level to participate in the efforts to simplification. One pilot project in this respect could be building capacity within the 4 pilot ministries to review their internal regulations, organisation and office workflows according to standards of better regulation. In the future, if the projects produces the expected results of effective oversight from OMSAR and over the 4 pilot ministries it would be appropriate to extend the pilot project also to the local administrations. This demands a very big effort in terms of co-ordination with the other public institutions in the definition of areas of intervention, strategic goals, management instruments and setting of better regulation standards and measures.

Portugal

Two entities based within the Presidency of the Council of Ministers at the centre of government now play a major role in the development of Better Regulation in Portugal: CEJUR (the legal centre of the Presidency of Council of Ministers in charge of the Legislar Melhor Programme), and SEMA (Secretary of State for Administrative Modernisation) with the support of AMA (the Agency for Administrative Modernisation, in charge of the Simplex Programme (OECD Best Practice EU Regulatory Reform)

Denmark

In Denmark the annual framework agreement between the central government and the two sub national umbrella organisations for municipal and regional interests appears to be an effective instrument for taking both central-local and local Better Regulation initiatives forward. Municipalities are invited to participate actively in developing ideas for de-bureaucratisation (while central government will remain responsible for the delivery of the programme). There is also a commitment to the shared development of e-government between local and central levels of government (through the STS Committee). The common citizen portal is an example of this. (OECD Best Practice EU Regulatory Reform)

Italy

Most of the regions have traditionally been equipped with comprehensive and formal procedures for drafting law proposals and have introduced some other tools and mechanisms for regulatory quality, such as measures for administrative simplification and RIA. In many aspects, regions have served as important laboratories for the design and implementation of regulatory tools, sometimes beyond the experience of the national government and before the 2001 constitutional reform.

Active Information and data management system

All targeted ministries (MoSA, Mol, MoPH and MoT) do not seem to really utilise in a sufficient way information and communication technology. There are various reasons for this, but one common is the lack of introduction of laws and bylaws that regulate topics that are related to the ICT operations (like introduction of digital signature). Another significant reason is the resistance to change, to introduce and utilise computerised systems. Moreover, the staffing of ICT units is

subject to a number of normative restrictions and characterised by unique and unpredictable methods of recruitment (mainly outsourcing) and redeployment of exiting staff from other Services.

While computer hardware exists to a bigger or less extent, utilisation by means of specialised application software is at a pretty low level. Even some initiatives that were undertaken by OMSAR, which is in charge of establishment of the e-Government in Lebanon, are not utilised equally in the 4 pilot ministries.

Lack of physical connectivity among the institutions is seen as one of the major problems in delivering e-government services. There are very few links that exist in electronic exchange of data and information, and those that are used are in many cases quite expensive. Till when the specific legislation for electronic management of documents and procedures is approved, the only initiative that can take place is to prepare draft standard regulations defining mandate and role of the ICT units define staffing needs and staff required profiles with modern style exhaustive job descriptions and start some pilot operations in the 4 beneficiary ministries

Particular attention is to be dedicated to the One-Stop-Shops that as it is happening now in the 4 pilot ministries are not operating as proactive “conferences of Services” but rather as mail boxes receiving applications and documents and dispatching certificates and permits. While waiting for the adoption of the legislation regarding the electronic management of documents and electronic signature, the OSS can be structured to perform three tasks: the reception of incoming applications and requests for services, the review and screening of the received documentation, the consultation process in lieu of the present “committees” that operate with sector specialists located in different ministries while they could be delegated to work in the OSS if not on a permanent base at least regularly and periodically.

A new code for e-Government in Italy

The new e-Government Code is the second pillar supporting the modernisation and digitisation of the Public Administration (PA) project besides the so-called “Brunetta” reform. The revision of the 2005 Code became necessary due to the fast evolution of IT. It responds to the need for tools enabling increased efficiency and effectiveness in the entire public system. The pursued aim is to stop obsolete structures and endless procedures from being a burden for the national budget and from discouraging foreign investment. The Code is applied at both the central and local level.

The main novelties of the code regard:

- **The re-organisation of the public administration** through the establishment of a unique office responsible for ICT activities, the streamlining of procedures at organisational and IT levels as well as the introduction of the IT protocol and the electronic file (*fascicolo elettronico*).
- **The streamlining of procedures at organisational and IT levels.** It is expected that the public administrations’ original documents will be drafted by using information technologies and that the rules governing the copying of administrative and electronic documents will consequently be revised;
- **The right to interact with the public administration through digital means.** All public administrations must have a fully legal valid, secure, certified digital channel (in most cases consisting of certified electronic mail, that will substitute return-receipt, registered mail) that will allow citizens and businesses to use their computers to communicate with public offices. Other provisions regard the introduction of e-payment means (via debit card, credit card, or prepaid card, and any other electronic payment instrument available), the exchange of data between companies and the administration, the access to networked services, the use of electronic signature, the dematerialisation of documents and the provision of more transparent content on institutional websites. Transparency and accessibility of administrative information and requirements are also enhanced.
- **Security of data exchange** through the adoption of emergency and recovery plans to face possible disasters, so as to ensure the continuity of public service delivery and of Government-to-citizen information exchange. The public administrations are also called upon to sign agreements on co-ordination, compatibility and mutual access to databases and systems. The administrations will need to make their public data available in open formats that can be reprocessed by third parties; the exchange of data between businesses and administrations is also planned. The administrations holding databanks will be required to enter into publicly disclosed agreements for ensuring the accessibility of their information to the other administrations. The agreements will govern the limits and the conditions of access to the databanks, including for ensuring the confidentiality of personal data.
- The new code is expected to enable considerable **productivity recovery**, that is:
 - Decrease in the time spent on administrative tasks (up to 80%).
 - Reduced judicial costs: within the six-months testing of electronic notifications in the framework of civil trials before the Milanese Courts, 100 000 such modifications were made, representing approx. EUR 1 million savings.
 - Approx. one million paper pages saved in one year as a result of dematerialisation. The target is to take this number to 3 million in 2012.
 - A 90% saving in the paper-related costs, including those pertaining to ecological impact for about EUR 6 million.
 - Wide-spread use of certified electronic mail (PEC)¹ which is expected to generate a EUR 200 million saving due to the reduction of letters with acknowledgement of receipt sent by the PA to the citizens, as well as less time and space dedicated to archiving the documents.

1. www.postacertificata.gov.it. The PEC is an e-mail address that ensures the sender of the actual delivery of the message to the designated address and provides the same legal value as a letter sent by registered mail.

In consideration of the points highlighted in the section of this report a broad strategy for modernisation and performance improvement of the Lebanese Public Administration is to contain a specific component concerned with the improvement of the regulatory framework focusing better regulation with particular attention to simplification of rules and procedures. The strategy should therefore be concerned with the building of national capacity in three main areas of intervention namely:

Tentative road-map for pilot activities to foster regulatory reform

Activity	Scope	Responsibility	Expected Results
<u>A) Better Regulation:</u> <u>Quality of Legislation</u>	<u>Improve the quality of legislative drafting, codification and management of stock of legislation</u>	OMSAR MOSA-MOI-MOT-MOPH	The regulatory framework is clear and manageable
Project to: <u>Organise Legislative review and simplification services</u>		OMSAR	
Strengthen capacity of central oversight office for better regulation	Provide guidance and monitoring of regulatory reform and simplification	OMSAR	Terms of reference, priorities and calendar for annual simplification defined
Adopt annual simplification Programme	Systematic annual review of administrative procedures by sector in each pilot ministry	MOSA-MOI-MOT-MOPH	Legislation reviewed and simplified
Establish ministerial task forces guided by Departments of legal affairs of each pilot ministry for review of legislation and simplification	Empower Departments of legal Affairs to lead respective regulatory review and simplification initiatives	MOSA-MOI-MOT-MOPH	Permanent structure in charge of simplification in each pilot ministry
Create a Central Registry of Administrative Procedures and related legislation	Ensure transparency and accessibility of legislation for administrators, citizens and businesses Rationalise the existing stock of Laws and secondary regulations	OMSAR	A systematic collection of legislation exists for easy consultation and classification

Build capacity for review and simplification of legislation	Establish a reliable and permanent base of resources in charge of carrying out regulatory reform as well as simplification	MOSA-MOI-MOT-MOPH	Qualified personnel in charge of simplification and regulatory review
<i>B) Simplification and reduction of Burdens</i>			
Project to: <u>Implement Better Regulation measures</u>			
Prepare guidelines and instructions for better regulation and simplification	Make slimmer and accessible the number of regulations and formalities	OMSAR	Common rules are adopted for regulatory for and simplification
Establish in each of the 4 pilot ministries a task force for RIA and SCM	Make available competent staff for RIA and SCM	MOSA-MOI-MOT-MOPH	A task force exists as a pilot initiative to repeat across the remaining ministries
Set rules and procedures for correct implementation of Regulatory Impact Analysis	Ex ante assessment of effects of regulation to ensure quality of norms and reduce risk of future legislative amendments and re-regulation	OMSAR	Consolidated reference rules for RIA are available
Build capacity to implement RIA and set up permanent capacity in the 4 pilot ministries for RIA	Create permanent capacity across ministries	MOSA-MOI-MOT-MOPH	Each ministry has dedicated staff for RIA
Set rules and procedures for correct implementation of SCM	Assessing and measuring administrative burdens for their reduction as part of simplification	OMSAR	Methodology for SCM is consolidated and measurement can take place
Prepare programme for training staff to implement measurement of burdens	Build capacity to implement SCM	MOSA-MOI-MOT-MOPH	Each ministry has dedicated staff for SCM
Set rules and procedures for the conduct of consultation with stakeholders and local Government authorities prior to regulatory initiatives and also for the already enforced regulations and procedures	Establish dialogue among stakeholders so to ensure appropriate regulatory action	OMSAR	Consultation is managed as a constant feature of better regulation at all levels of the administration

<i>c) Organisation and Management of Administrative Structures</i> <u>Project for : Functional Review</u> - Plan functional review in the 4 pilot ministries - Establish Task force in each pilot ministry for Functional Review - Build support capacity for FR in the 4 pilot ministries - Review/reform legislation establishing the 4 pilot ministries <u>Project for : Reorganisation and rationalisation</u> - Reorganise 4 pilot ministries rationalising number of units and reallocating roles and responsibilities - Design options and formulas to delegate authority to local administration and within 4 pilot Ministries - Build capacity to manage reorganisation exercises - Establish HRM units in each of the 4 pilot ministries in support of the CSB - Carry out a staffing needs assessment in each one of the 4 pilot ministries	<i>Prepare measures for reorganisation and rationalisation of services</i> A plan of action is meant to define terms and conditions of the review Make possible the implementation of the FR Rationalise and strengthen the administrative capacity of the 4 pilot ministries Obtain a leaner and cost efficient organisation Vertical Distribution of responsibilities according to capacity across the Ministry and regional administration Reorganisation can rely on skilled and competent staff Delegate some HRM functions to improved personnel units to ensure appropriate staff planning and management Reorganisation modelled according to defined staffing needs	OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH OMSAR MOSA-MOI-MOT-MOPH CSB MOSA-MOI-MOT-MOPH CSB MOSA-MOI-MOT-MOPH	A plan of action can be implemented A dedicated task force is present in each ministry The legislation is improved Effective action from rationally structured Ministry top management left to direction functions Reorganisation is Professionally conducted Direct control over HR Control and management of staffing levels
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Decentralise the HRM planning to new HRM units in each one of the 4 pilot ministries <i>d) Data and information management</i> <u>Project for improving the use of ICT as tool for simplification</u>	Plan staffing according to needs	CSB MOSA-MOI-MOT-MOPH	Control over movement of HRs
Assess the level of standardisation of hardware, software in the 4 pilot ministries	Eliminate the discrepancies among the 4 institutions regarding quality and quantity of equipment	OMSAR	All institutions use the same type of equipment and communication protocols
Ensure the presence of a structured ICT Department in each Ministry	Ensure continuity and quality of ICT activities in each ministry	MOSA-MOI-MOT-MOPH	Policies and projects are implemented effectively
Fill the gaps of ICT equipment	Ensure availability of appropriate ICT equipment	OMSAR	Continuity of ICT activities
Ensure that all 4 pilot ministries have the workflow programmes working and standardised	Guarantee uninterrupted work and timely service delivery	MOSA-MOI-MOT-MOPH	Work is managed rationally and efficiently
Implement as soon as possible the e-government strategy and legislation	Smooth and efficient management of procedures and data management	OMSAR	Interoperability is guaranteed exchange of information reduces red-tape
Ensure appropriate and regular information sharing and management of procedures	Networking and interoperability as main feature of regulatory action	OMSAR	Processing formalities via internet and manage documents electronically



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Technical Assistance to the Administrative Simplification in selected ministries in Lebanon (Ministries of Social Affairs, Tourism, Public Health and Industry)

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Service Contract ENPI 2014/348-279

Project Strategy

Draft



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TABLE of Content

- CITIZEN DEMAND DRIVEN APPROACH
 - WHAT DO CITIZENS NEED?
- THE IDEAL SOLUTION
- THE CHALLENGES IN THE LEBANESE CONTEXT
- PRACTICAL SOLUTIONS ADAPTED TO THE SITUATION
- POSSIBLE ACHIEVEMENTS ON THE SHORT-TERM
- METHODOLOGY AND ROADMAPS
 - LIST OF ACTIONS
- REQUIREMENTS FOR SUCCESSFUL IMPLEMENTATION & SUSTAINABILITY



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CITIZEN DEMAND DRIVEN APPROACH

WHAT DO CITIZENS NEED?

- **Citizen/businesses oriented services**
- **Responsiveness**
- Basic requirements of the citizen 1/3:
 1. To be Informed on:
 - Starting location (where to apply)
 - Supporting documents (what documents should be provided)
 - Cost (how much does it cost)
 - Required time (how much time does it need)
 - Steps (outline of sequence)



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CITIZEN DEMAND DRIVEN APPROACH

WHAT DO CITIZENS NEED?

- Basic requirements of the citizen 2/3:
 2. Accessible place where to apply
 - One-Stop-Shop or Citizen Service Centre
 - Decentralised services
 - Appropriate waiting areas and client friendly facilities
 - Physical presence only when needed
 - On-line application facility
 3. Easy way for payments:
 - One place to pay and one time
 - Clear and transparent fees collection
 - Usage of new payment methods (cards, Banks, Mobils,)
 - Reasonable fees



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CITIZEN DEMAND DRIVEN APPROACH

WHAT THE CITIZEN NEEDS?

- Basic requirements of the citizen 3/3:
 - 4. Commitment on timing and requirement
 - Clearly defined time frame and possible delays for finalising the procedure
 - Commitment on declared steps and fees
 - Less supporting document, to be replaced by declarations to be subsequently verified by the PA
 - Intelligent and result oriented application of rules
 - 5. Easy and smooth delivery
 - Inform the citizen when procedures are completed (calls, SMS, email,....)
 - Delivery through Liban Post, Banks,



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THE IDEAL SOLUTION

- Integrated Administrative Reform Programme
- Costs time, money, efforts,
- Needs welcoming and suitable context
- Should involve many areas of responsibility:
 - Political and Strategic
 - Legislative
 - Regulatory and Organisational
 - Human Resources Management
 - Management Information Systems
 - Infrastructure and Equipment



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THE CHALLENGES IN THE LEBANESE CONTEXT

- Insufficient political commitment and policy making
- Limited economic capacity and availability of funds
- Lacking legislative initiative (due to the political situation)
- Inadequate number of human resources and their capacity
- Poor management of information
- Weak supporting infrastructure



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PRACTICAL SOLUTIONS ADAPTED TO THE SITUATION

- Course of Action 1/4:
 - **Clear goal: better and faster services to the citizen with reasonable additional overheads on the administration**
 - Policy making on central level and increasing decentralised implementation
 - Reduce preliminary controls and replace with ex-post controls
 - De-regulation and confidence in citizen in order to decrease the need for supporting document
 - Contact with citizen only in front office
 - Movement of documents not movement of citizen
 - Decisions are taken in back office with no contact with the citizen
 - Supporting documents are provided at the beginning and the end of the procedure only



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PRACTICAL SOLUTION ADAPTED TO THE SITUATION

- Course of Action 2/4:
 - Transparency: rules are explicit, supporting documents, procedure steps, timing, fees and conditions are published and respected by both sides
 - Administrations can communicate and get supporting documents from each other (Liaison offices)
 - One administration implements and controls, others set rules
 - Categorise procedures according to their importance, cost and impact and apply appropriate decision making rules to each category (reduce control, reviewing committees involvement, reduce supporting documents or need for personal presence,.....)
 - Delegation of power to lower level (mid-management takes decisions based on explicit rules - control by higher management)



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PRACTICAL SOLUTION ADAPTED TO THE SITUATION

- Course of Action 3/4:
 - Re-organisation of structures
 - Rationalisation of staffing patterns
 - Reduction of document flow
 - Efficient complaint management system
 - ICT based solutions come with institutional development
 - Multimodal payment of fees (bank, cards, Mobils,)
 - Availability of information (Citizen Guide, Employees Guide,....)
 - Legislations and regulations reviewed, adapted when possible
 - MIS's built



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PRACTICAL SOLUTION ADAPTED TO THE SITUATION

- Course of Action 4/4:
 - Rules set for training of personnel, selection for particular tasks, incentives and performance measurement
 - Equipment (provision, installation, upgrading)
 - Communication and Information to the citizen and to the public employees
 - Specialised units for policies and strategies
 - Pilot project to test the solutions
 - Insurance of sustainability through trained task forces



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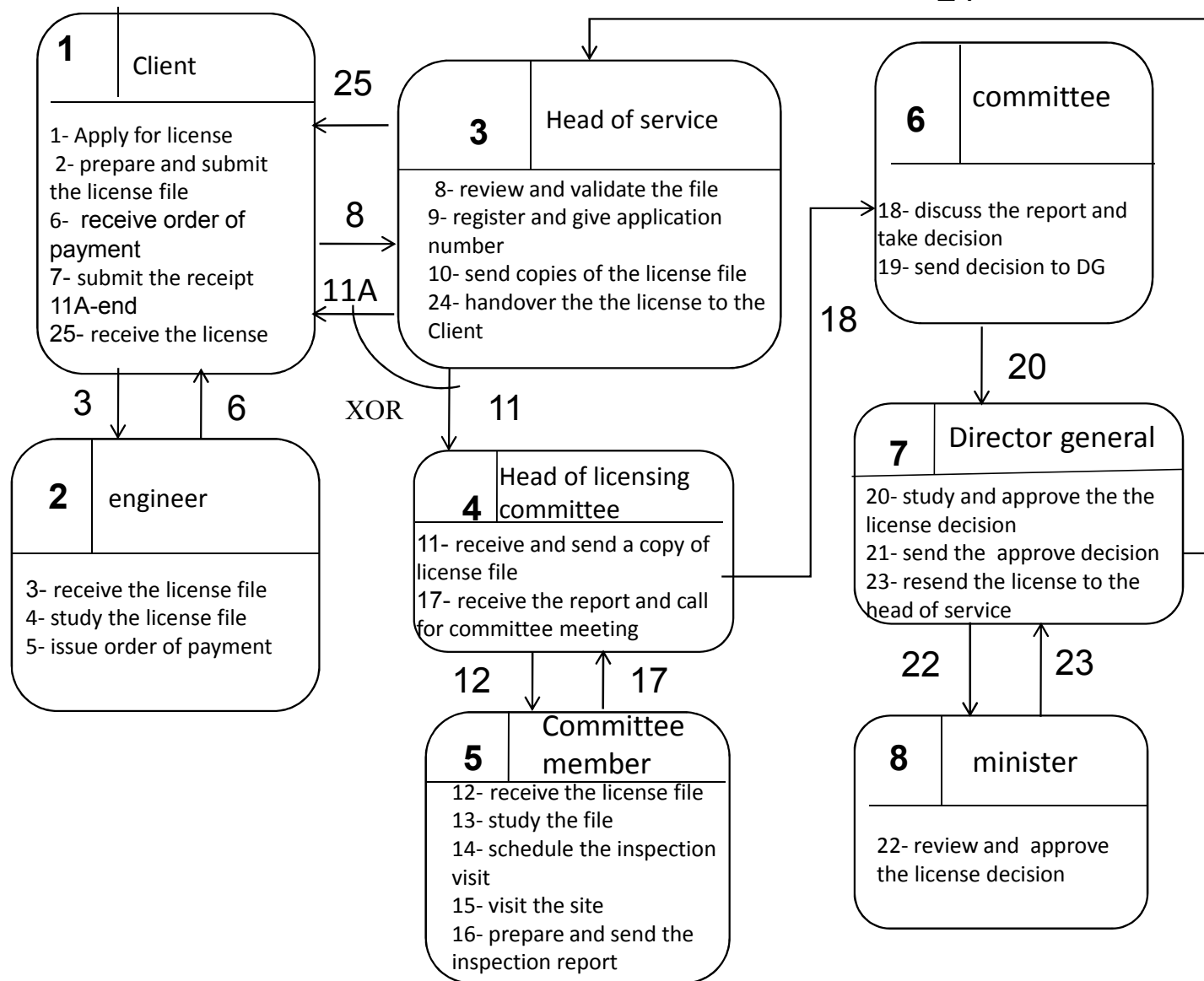


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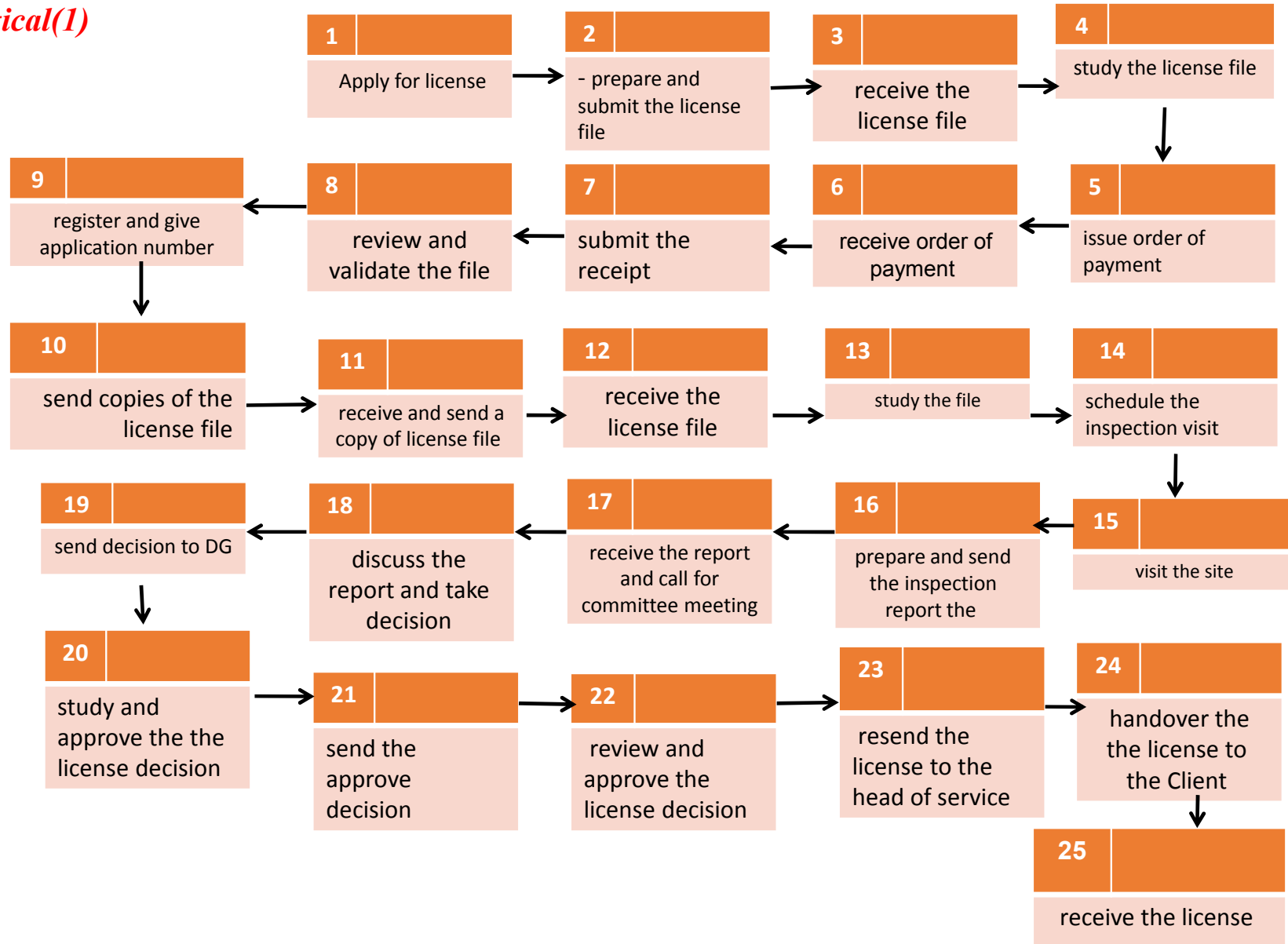
POSSIBLE ACHIEVEMENTS ON THE SHORT-TERM

- Pilot Project in each Ministry
- Based on simplified procedure model, Including:
 - Procedure Re-engineering
 - New organisational structure
 - Legal and regulatory compatibility
 - HR & training
 - ICT support
- Possible Model (example):

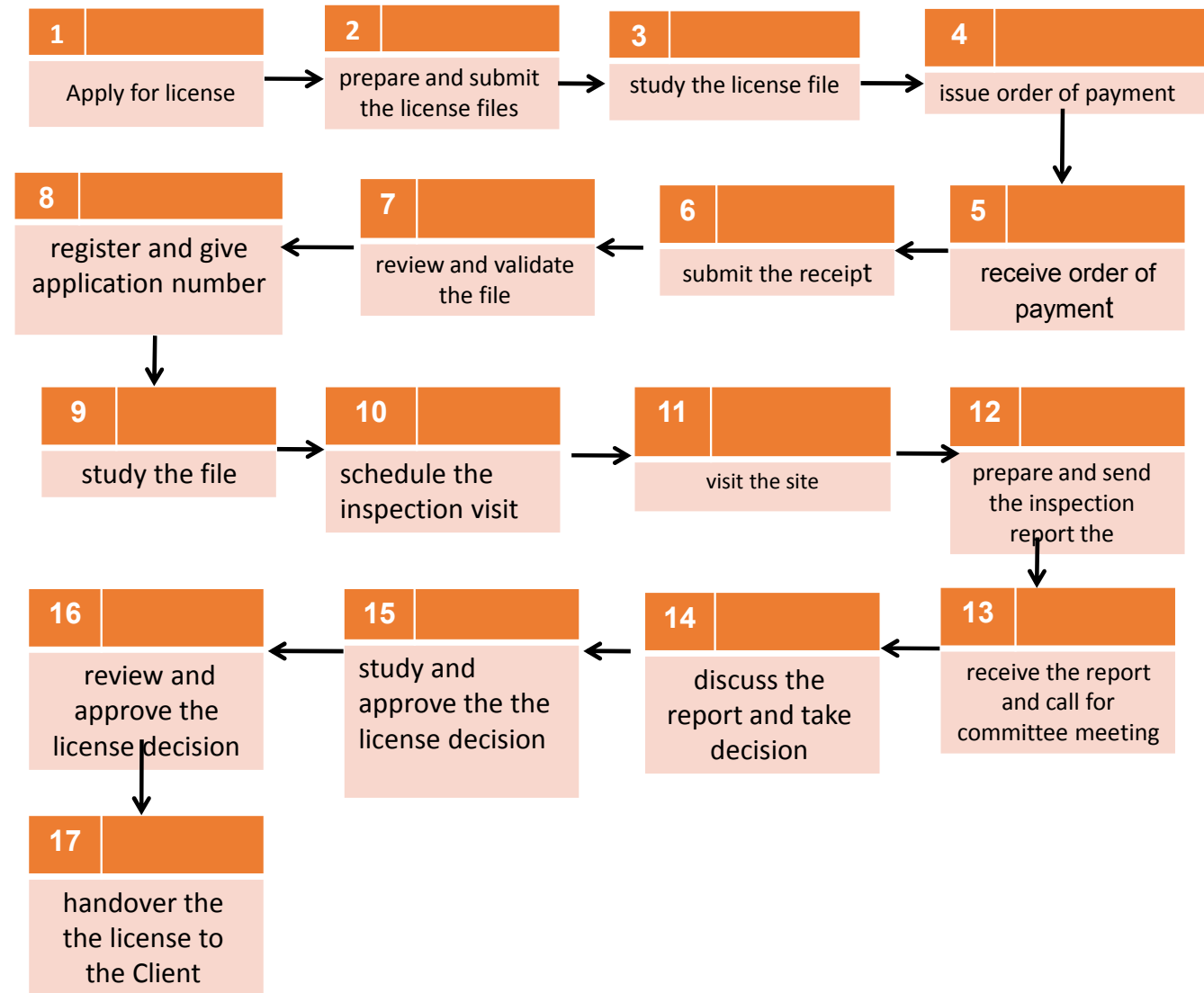
Current Physical Industrial License (Type Establishment License) 24



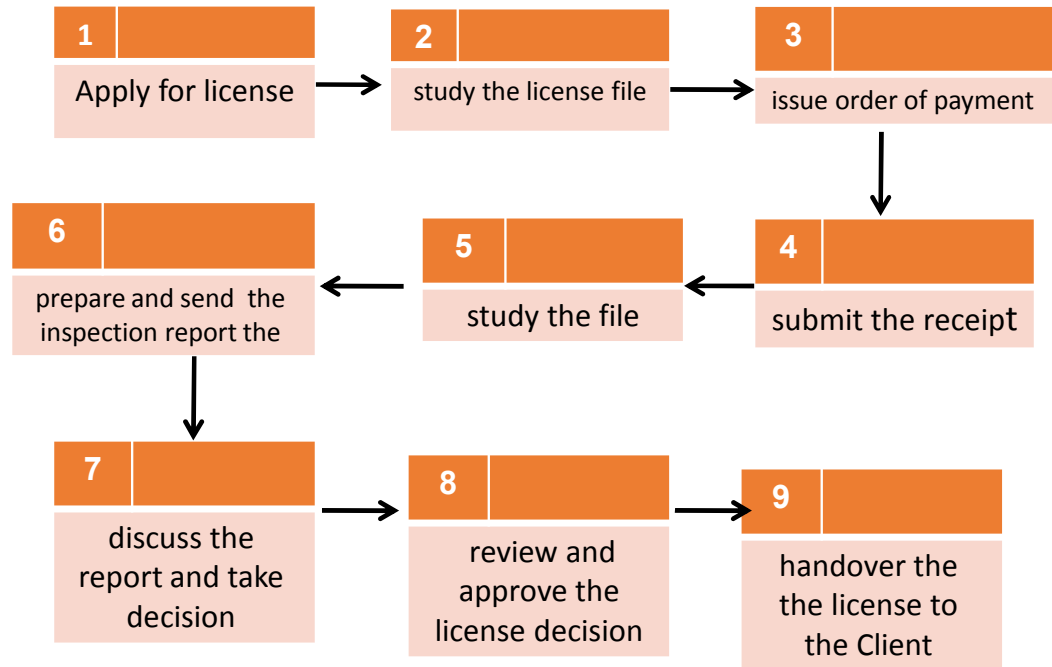
**Current Logical(1)
Functions**



Current Logical(2)
No transfer functions



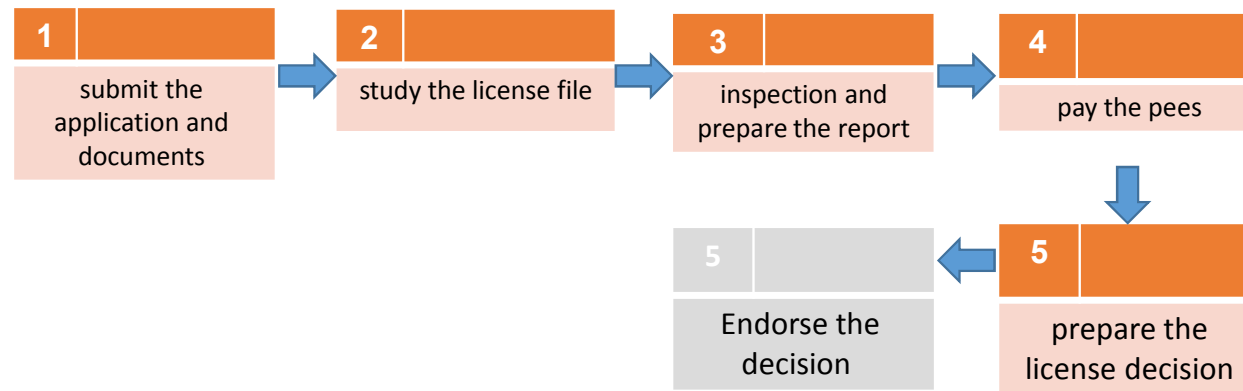
Current Logical(3)
No inter-procedure
signatures



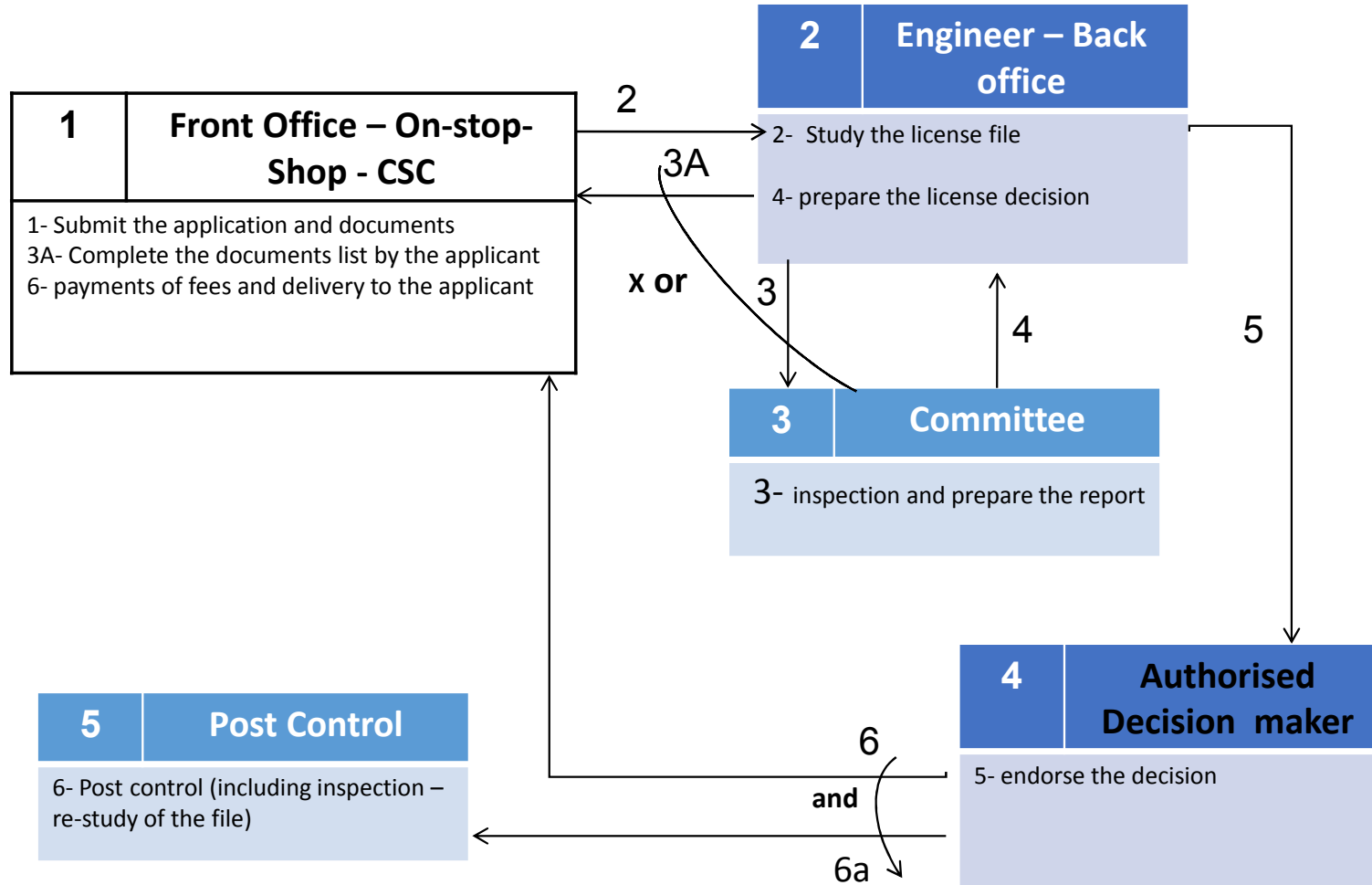
List of main functions (purposes of steps):

- 1- submit the application and documents
- 2- study (examine/review) the license file
- 3- inspection and prepare the report
- 4- pay the administrative fees
- 5- prepare the license decision
- 6- confirm the decision

***Required Logical:
Proposed functions (steps)***



**Required Physical:
Implementation of the
proposed steps by admin
units**





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METHODOLOGY AND ROADMAPS

- Example of prioritised list of simplification course of action:
- The beneficiaries, OMSAR and TAT should discuss and agree on the scale of priorities for each area of intervention.
- The legal experts from all sides should verify and confirm the legality of measures.



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Simplification Course of Action	Priority (1-5)	Applicability (Y/N)	Rank
➤ Clear goal: better and faster services to the citizen with reasonable additional overheads on the administration			
➤ Policy making on central level and increasing decentralised implementation			
➤ Reduce preliminary controls and replace with ex-post controls			
➤ De-regulation and confidence in citizen in order to decrease the need for supporting document			
➤ Contact with citizen only in front office			
➤ Movement of documents not movement of citizen			
➤ Decisions are taken in back office with no contact with the citizen			
➤ Supporting documents are provided at the beginning and the end of the procedure only			
➤ Transparency: rules are explicit, supporting documents, procedure steps, timing, fees and conditions are published and respected by both sides			
➤ Administrations can communicate and get supporting documents from each other (Liaison offices)			
➤ One administration implements and controls, others set rules			
➤ Categorise procedures according to their importance, cost and impact and apply appropriate decision making rules to each category (reduce control, reviewing committees involvement, reduce supporting documents or need for presence..)			
➤ Delegation of power to lower level (mid-management takes decisions based on explicit rules - control by higher management)			
➤ Re-organisation of structures			
➤ Rationalisation of staffing patterns			
➤ Reduction of document flow			
➤ Efficient complaint management system			
➤ ICT based solutions come with institutional development			
➤ Multimodal payment of fees (bank, cards, Mobils,)			
➤ Availability of information (Citizen Guide, Employees Guide,....)			
➤ Legislations and regulations reviewed, adapted when possible			
➤ MIS's built			
➤ Rules set for training of personnel, selection for particular tasks, incentives and performance measurement			
➤ Equipment (provision, installation, upgrading)			
➤ Communication and Information to the citizen and to the public employees			
➤ Specialised units for policies and strategies			
➤ Pilot project to test the solutions			
➤ Insurance of sustainability through trained task forces			



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LIST OF ACTIONS

Action	Timing	Responsibility
Select rules and prioritising basis	Analysis Phase	TAT – OMSAR - Beneficiaries
Define legislative and regulatory “borders”	Analysis Phase	TAT – OMSAR
Establish and train task forces	Design Phase	OMSAR – Beneficiaries – TAT
Select priority procedures	Analysis Phase	Beneficiaries – OMSAR – TAT
Define Model Organisational Structure	Analysis Phase	TAT – OMSAR – Beneficiaries
Define Model ICT Solutions	Analysis Phase	TAT – OMSAR – Beneficiaries
Define Model Standard Procedure	Analysis Phase	TAT – OMSAR – Beneficiaries
Propose new mapping for selected procedures	Design Phase	TAT – OMSAR – Beneficiaries
Propose new structure to implement the selected procedures	Design Phase	TAT – OMSAR – Beneficiaries
Propose the decisions\regulatory changes to be issued	Design Phase	TAT – OMSAR – Beneficiaries
Draft the Citizen Guide for the selected procedures	Design Phase	TAT – OMSAR - Beneficiaries
Draft the Administrative Guide (employees guide)	Design Phase	TAT – OMSAR - Beneficiaries
Define the proposed payments methods	Design Phase	TAT – OMSAR – Beneficiaries
Define the ICT solutions (Software, Hardware, Infrastructure)	Design Phase	TAT – OMSAR – Beneficiaries
Define the HR requirement (Profiles – training needed)	Design Phase	TAT – OMSAR – Beneficiaries
Training of the staff	Implementation Phase	TAT
Issuing the decisions needed (procedures – structure -)	Implementation Phase	Beneficiaries - OMSAR
Equipping the front and back offices	Implementation Phase	OMSAR - Beneficiaries
Preparing the publications, visibility and communication materials	Implementation Phase	TAT – OMSAR – Beneficiaries
Implementation of proposed solution	Implementation Phase	Beneficiaries – OMSAR - TAT
Reporting on pilot implementation, observations and propositions	Implementation Phase	TAT – OMSAR – Beneficiaries



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REQUIREMENTS FOR SUCCESSFUL IMPLEMENTATION & SUSTAINABILITY

ON THE SHORT-TERM:

- Realistic solutions within the existing legislative frame with adaptation of regulations and working rules
- Focus on informing citizens and transparency
- Using the ICT as tools and vehicle for modernisation
- Establishing One-Stop-Shops
- Pilot simplified procedures and providing applicable models
- Creating task force and prepare them as pioneers for change



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REQUIREMENTS FOR SUCCESSFUL IMPLEMENTATION & SUSTAINABILITY

ON THE MEDIUM-TERM: TAAS PREPARES PLANS AND MODELS

- Modifying Organisational Structures
- Targeted Human Resources Development
- Advanced ICT systems and MIS's
- Extension of One-Stop-Shop to cover all government and local government services



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REQUIREMENTS FOR SUCCESSFUL IMPLEMENTATION & SUSTAINABILITY

ON THE LONG-TERM: TAAS PREPARES RECOMMENDATIONS

- Modification of roles within the government
- Redistribution of responsibilities and authorities between the central government and the local government
- Clear and concise laws
- Intergovernmental electronic services
- Citizen oriented Electronic services

e-government